

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 204 OF 2002

Enayet Ali Biswas and others

----- Defendants-Appellants-Petitioners

=Versus=

Mst. Rokeya Khatun being dead her legal
heirs Md. Samsur Rahman Chowdhury and
others

----- Plaintiffs-Opposite Parties

No one appears

----- For the Petitioners

Mr. Md. Nurul Amin with

Mr. Mohammed Mozibur Rahman and

Mr. Suvro Dev Ratul, Advocates

----- For the Opposite Parties

Heard on: 31.10.2017

Judgment on: 04.12.2017.

At the instance of the present defendants-appellants-petitioners, Enayet Ali Biswas and others, this Rule has been issued calling upon the opposite party Nos. 1 and 2 to show cause as to why the impugned judgment and decree dated 16.07.2001 passed by the Subordinate Judge, (Joint District Judge) 1st Court, Kushtia in Title Appeal No. 22 of 1993 affirming the judgment and decree dated 28.10.1992 passed by the Assistant Judge, Additional Court, Kushtia in the Title Suit No. 58 of 1992 should not be set aside.

The relevant facts for disposal of this Rule, *inter-alia*, are that the present opposite party Nos. 1 and 2 as the plaintiffs filed the Title

Suit No. 69 of 1983 (renumbered as Title Suit No. 58 of 1992), in the court of the learned Assistant Judge, Kushtia. The plaint contained that the suit property was originally belonged to one Abdul Aziz Biswas who died leaving behind two daughters who were the plaintiffs and five sons who were the defendants and his wife Abiron Nessa also died. The plaintiffs opposite parties claimed that they had succeeded 2 Kora, 13 Gonda and 1 Kranti equivalent to 14.7592 acres out of the total land left behind by the said deceased Abdul Aziz Biswas and Abiron Nessa (approximately land measuring 88.5152 acres), which they had been enjoying in ejmali but the plaintiffs came to know that the defendant brothers have managed to record the properties in their names.

The present petitioners as the defendant contested the suit by filing separate written statements denying the statements made in the plaint. The defendant No. 1 died during the pendency of the suit and substituted by his legal heirs as the defendant Nos. 1 “Ka”–1 “Gha” who contended that Abdul Aziz Biswas was the owner of all schedule property except the property in mouza Bahadurkhali. After the death of Abdul Aziz, they got 2 Kora, 13 Gonda and 1 Kranti equivalent to 14.7592 acres. The land in mouza Bahadurkhali was owned and possessed by the defendant petitioner No. 1 and there was a registered amicable partition deed among the five brothers, accordingly, the defendant No. 1 got .0337 acres as per the partition deed and prayed for saham thereof.

The defendant Nos. 5-12 contended by filing a written statement that the land in Bahadurkhali mouza, S.A. Khatian No. 1037 and Dag No. 746 land measuring .1219 and S.A. Khatian No. 247, Dag. No. 875 land measuring .0337acre, accordingly total land .1556 acre were owned by the defendant petitioners who are five brothers and the entered into partition deed, according to which each brother got .0375 acre which was not a land of their father Abdul Aziz Biswas and he never possessed the land therefore present plaintiff opposite parties have no entitlement.

The defendant No.40 filed a written separate statement contending that the land in mouza Bahadurkhali in Dag No. 746 land measuring .0312 acre has been owned by him as the successor of one of the brothers. There is a godown in this land by way of deed of amicable partition dated 17.05.1997 and also by a deed of heba-bil-ewaj dated 20.08.1980. Subsequently, the land was owned by his son Mahamud Hossain through a heba deed dated 10.05.1986, as such, this defendant claimed separate saham.

After hearing the parties and considering the evidence adduced and produced by the parties the learned trial court decreed the suit by his judgment and decree dated 28.10.1992. Being aggrieved the present petitioners as the appellants preferred the Title Appeal No. 22 of 1993 in the court of learned District Judge which was heard by the learned the than Subordinate Judge, Court No. 1, Kushtia on transfer who by his judgment and decree dated 16.07.2001disallowed the

appeal thereby affirmed the judgment of the trial court. This revisional application has been filed by challenging the legality of the said impugned judgment and decree and the present Rule was issued thereupon.

This matter has been appearing in the list for hearing from 21.07.2016 and later on with the name of learned Advocate for the petitioners and the opposite parties but no one appears to support the Rule even when the matter has been taken up on several occasions for hearing. Thereafter, hearing was concluded on 31.10.2017 in absence of the present learned Advocate for the petitioners. However, from the revisional application it appears that the present petitioners have taken the ground that the court of appeal below disposed of the appeal without considering the claim of the appellants –petitioners regarding the claim of self acquired property of plot No. 746 of khatian No. 1037 an area of .1219 acres and plot No. 875 of khatian No. 247 an area of .0337 acres of Mouja Bahadurkhali and as such committed an error of law resulting in an error in the decision occasioning failure of Justice.

The Rule has been opposed by the present opposite party Nos. 1 and 2.

Mr. Md. Nurul Amin, the learned Senior Advocate, appearing along with the learned Advocates Mr. Mohammed Mozibur Rahman and Mr. Suvro Dev Ratul, submits that the learned trial court after considering the relevant documents and the depositions of the PWs

and DWs came to a conclusion to decree the suit in a preliminary form by allowing saham of 14.75 acres for the plaintiff opposite parties. The learned appellate court below concurrently found in favour of the present opposite parties for the land mentioned above on the basis of evidence, therefore, the learned appellate court below committed no error of law by affirming the judgment of the learned trial court, as such, no interference from this court is called for.

The learned Advocate further submits that admittedly the suit land was originally own by Abdul Aziz Biswas who died leaving behind two daughters and five sons who have inherited their respective portions of land by way of law of inheritance (Saria law). Accordingly, two daughters who are the plaintiffs got $\frac{1}{6}$ of the total land left behind by Abdul Aziz, accordingly, two plaintiffs got land 2 Kora, 13 Gonda and 1 Kranti equivalent to 14.7592 acres as the daughter of said late Abdul Aziz in nine mouzas mentioned in the plaint of the suit including .0259 acres in Bahadurkhali mouza. Therefore, the concurrent findings of the learned courts below passing by the impugned judgment and decree committed no error of law therefore, the Rule should be discharged.

Considering the above submissions made by the learned Advocates appearing for the opposite parties and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with the annexures therein, in particular, the impugned judgment and decree passed by the learned appellate court

below and also perusing the huge materials in the lower court records, it appears that the present plaintiff opposite parties filed the suit for partition of the suit land measuring 14.7592 acres which they claimed to have inherited from their deceased father and mother namely Abdul Aziz Biswas and Abiron Nessa along with their five brothers who were made parties as the defendants in the said suit. It is also claimed that being two daughters of said Abdul Aziz they have succeeded $\frac{1}{6}$ portion of total land at the ratio of 2:1 under the Saria Law as the two daughters and five sons of said Abdul Aziz Biswas.

There are some admitted positions between the parties regarding the land left behind by the Abdul Aziz Biswas and his wife late Abiron Nessa that the present opposite parties and the petitioners have got the appropriate portion of land in all mouzas described in the plaint and the right of record of the brothers and sisters regarding the land in eight mouzas except Bahadurkhali have been properly published and there is no dispute about that among the parties.

However, the dispute arose among the parties regarding the land in mouza Bahadurkhali measuring 1.1556 in S.A. Khatian No. 1037 Dag No. 746 and also S.A. Khatain No. 274 Dag No. 875. I have carefully examined the documents exhibited by the present defendant petitioners as the exhibits “Ka”, “Ga” and “Gha” which are deeds of amicable partition among the brothers who are the defendant and “Ga” is a purchased deed for the land measuring $1\frac{3}{4}$ by two brothers.

In contrast the present plaintiff opposite parties produced exhibit-2 dated 02.01.1948 which shown that the land was purchased by the predecessor of the plaintiff and defendant being Abdul Aziz Biswas from Gouro Gopal land measuring .1556 in two dags. I am, therefore, of the opinion that in mouza Bahadurkhali the present plaintiff opposite parties are entitled to get their portion of land as the legal heirs of Abdu Aziz Biswas and the present defendant petitioners are also owners as the legal heirs, therefore, the plaintiff opposite parties are entitle to get land measuring .0259 in the said Bahadurkhali mouza as prayed for by filing the suit. I am of the opinion that the claim of the defendant petitioners as to purchase of total land measuring .1556 by and between the brothers and also the amicable partition among themselves exhibit-“Ka” could not substantiate the claim of the present defendant petitioners. Moreover, the defendants did not claim respective saham in the suit.

I am now inclined to examine the judgment and decree passed by the learned courts below. The learned trial court came to a lawful conclusion to decree the suit in favour of the present plaintiff opposite parties on the basis of the following findings:

“সেমেতে মোকদ্দমার বাদীদ্বয় তপশীল বর্ণিত বাহাদুরখালী মৌজার বিভাজ্য-যাগ্য .১৫৫৬ শতক ভূমি মধ্যে পৈত্রিক ওয়ারিশ সূত্রে প্রাপ্ত ২ কড়া, ১৩গন্ডা ১ এনস্তি অংশ .০২৫৯ শতক ভূমির স্বত্বাধিকারী ব-ট। উপরোল্লিখিত আলোচনা এবং প্রাপ্ত সাক্ষ্যের ভিত্তিতে বাদীদ্বয় আর্জির তপশীল বর্ণিত জমাজমি মধ্যে পিতার ওয়ারিশ সূত্রে প্রাপ্ত ২ কড়া, ১৩ গন্ডা, ১ এনস্তি অংশ ১৪.৭৫৯২ একর ভূমি বাবদ বন্টনের ডিক্রী

পাই-ত হকদার। অপরদি-ক বিবাদীগন তাহা-দর নিজ নিজ জবা-ব প্রার্থীত ছাহাম সম্প-র্ক কোন হিস্যা কিংবা সুনির্দিষ্ট কোন জমির পরিমান উল্লেখ না করায় অত্র মোকদ্দমায় কোন ছাহাম পাইবে না।”

The learned appellate court below concurrently found against the present defendant petitioners on the basis of the following findings:

“পূ-র্বর আ-লাচনায় দেখা যায়, ১-৪ নং বিবাদী ও ৫-১২ নং বিবাদীর পূর্ববর্তী হবিবুর রহমান বাহাদুরখালী মৌজার .১৫৫৬ একর ভূমি তাহা-দর নিজ না-ম খরি-দর বিষয় প্রমা-ন সমর্থ হন নাই। সেকারন উক্ত খতিয়ানদ্বয় বাদীনিদের ওয়ারিশসূত্রে প্রাপ্ত ২ কড়া, ১৩ গন্ডা, ১ এগন্টি অংশ .০২৫৯ একর ভূমির স্বত্ব উক্ত দলিল ও হেবা বিল ওয়াজ দলিল মূ-ল নষ্ট হই-ত পা-র না। বাহাদুরখালী মৌজার নালিশী খতিয়ানদ্ব-য় বাদী-রেসপন-ডন্ট প-ক্ষর ২ কড়া, ১৩ গন্ডা, ১ এগন্টি অংশ .০২৫৯ একর ভূমি-ত বাদীগ-নর স্বত্ব অক্ষুণ্ন রহিয়া-ছ। ”

In view of the above discussions and the concurrent findings of the learned courts below, in particular, the judgment passed by the appellate court below. I do not find any error of law committed by the learned appellate court below, because the judgment and decree have been passed after proper consideration and reading of the evidence adduced and produced by the parties in the court below.

I am, therefore, not inclined to interfere into the judgment and decree passed by the learned appellate court below.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The interim order of stay granted at the time of issuance of the Rule upon the impugned judgment and decree is hereby recalled and vacated.

The Section is directed to communicate this judgment and decree to the concern Court below and also directed to send down the lower court records immediately.